

25STCV29057 25STCV29057

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Dept. 617

Date: 8-20-26

Case #: 25STCV29057

Trial Date: None Set

DEMURRER WITH MOTION TO STRIKE

MOVING PARTY: Defendants, 423 The Madison, LLC and Housing4Humanity

RESPONDING PARTY: Plaintiff, Johnny Goodwin

RELIEF REQUESTED

Demurrer to Second and Sixth Causes of Action in Complaint

Motion to Strike

SUMMARY OF ACTION

Plaintiff Johnny Goodwin filed the instant habitability action against Defendants AIDS Healthcare Foundation (Foundation), Housing4Humanity (H4H), and 423 The Madison, LLC (Madison) asserting causes of action for: (1) Breach of Contract/Covenant of Quiet Enjoyment/Warranty of Habitability; (2) Tortious Breach of the Implied Warranty of Habitability; (3) Negligence; (4) Violation of California Civil Code Section 1942.4; (5) Violation of Unfair Business Practices; and (6) Tenant Harassment.

RULING

Request for Judicial Notice: Granted.

The Court takes judicial notice of the municipal code provisions. (*Madain v. City of Stanton* (2010) 185 Cal.App.4th 1277, 1280, fn. 1.)

Demurrer: Sustained.

Madison and H4H demur to the second and sixth causes of action in Plaintiff's complaint for tortious breach of the implied warranty of habitability and tenant harassment. They argue that the tortious breach of implied warranty claim sounds in contract, making it duplicative of Plaintiff's breach of contract claim, and Plaintiff fails to plead that Madison and H4H were given notice of the alleged breach. Defendants argue that the tenant harassment claim fails to allege specific conduct directed at Plaintiff and relies in part on an inapplicable municipal code provision. Plaintiff opposes the demurrer, denying his tortious breach of implied warranty claim is duplicative and maintaining the sufficiency of the allegations in support of his claims. Defendants' demurrer is sustained with leave to amend.

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as

admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.) "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

Second Cause of Action: Tortious Breach of the Implied Warranty of Habitability

Defendants argue that Plaintiff's tortious breach of the implied warranty of habitability claim fails because the claim sounds in contract and is thus duplicative of the breach of contract cause of action. They further argue that Plaintiff does not allege that H4H and Madison received notice of the breach after they began operating the property in December 2024 and March 2025, respectively. Duplication is not grounds for demurrer. (Code Civ. Proc., § 430.10; *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 890; but see *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290 [sustaining demurrer to duplicative cause of action].) Nonetheless, the Court finds that Plaintiff fails to adequately plead his claim.

"[A] tenant may maintain a tort action against his landlord for damages suffered by way of annoyance or discomfort or for injury to his personal property caused by the landlord's failure to keep the premises in a habitable condition." (*Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal.App.4th 1281, 1298.) "The elements of such an affirmative claim are the existence of a material defective condition affecting the premises' habitability, notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages." (*Id.* at p. 1297.)

Plaintiff fails to sufficiently plead H4H and Madison's notice of the alleged uninhabitable conditions. Plaintiff alleges that H4H owned and operated the property between December 30, 2024 to March 21, 2025 and that Madison has owned and operated it since then. [Compl. ¶¶ 14-15.] But the complaint is devoid of allegations that H4H and Madison were put on notice of the property's condition. At most, the complaint indicates citations from government agencies which predate their

ownership of the property. [Id. ¶¶ 20-25.] Plaintiff therefore fails to plead an essential element of his claim.

Plaintiff's reliance on an alter ego theory of liability is unavailing. Plaintiff attempts to impute Foundation's notice to H4H and Madison based on the corporate structure of the defendants. He alleges that H4H is a subsidiary of Foundation, Madison is a subsidiary of H4H, and that the defendants owned and operated the property "together as part of the same corporate structure." [Compl. ¶ 12.] To the extent Plaintiff relies on a "single enterprise" theory of liability, he does not allege "an inequitable result if the acts in question are treated as those of one corporation alone." (Tran v. Farmers Group, Inc. (2002) 104 Cal.App.4th 1202, 1219.) Because there is a reasonable possibility that Plaintiff can amend his complaint to cure this defect, the demurrer is sustained with leave to amend.

Sixth Cause of Action: Tenant Harassment

Defendants argue that Plaintiff's tenant harassment claim fails because he does not allege conduct specifically directed towards him. They further contend that to the extent Plaintiff relies on LAMC section 8.52.130 for his claim, that provision is inapplicable because it applies only to the unincorporated areas of Los Angeles County.

The demurrer to the tenant harassment claim is sustained. The amended Tenant Anti-Harassment Ordinance defines tenant harassment as "a landlord's bad faith conduct directed at a specific tenant or tenants that causes the latter detriment or harm." (LAMC § 45.33.) Here, Plaintiff only alleges a general lack of maintenance on the property that affected his "unit, health, and safety" rather than conduct that specifically targeted him. [Compl. ¶¶ 18-33, 90.] Section 8.52.130 is also inapplicable because it only applies to "Landlords and Tenants in Dwelling Units within the unincorporated areas of the County," and Plaintiff does not allege the property is located in such an area. Because there is a reasonable possibility that Plaintiff can amend his complaint to allege specific conduct directed at himself, he is granted leave to amend.

Motion to Strike: Granted.

H4H and Madison move to strike Plaintiff's prayer for punitive damages as well as allegations supporting his punitive damages claim. They argue that Plaintiff does not sufficiently allege the requisite malice or oppression to support his punitive damages claim against them. Plaintiff opposes the motion, maintaining the sufficiency of the allegations in support of his claim. Defendants' motion is granted with leave to amend.

To support punitive damages, the plaintiff's complaint "must allege ultimate facts of the defendant's oppression, fraud, or malice." (Cyrus v. Haveson (1976) 65 Cal.App.3d 306, 316-17; Civ. Code, § 3294, subd. (a).) "Malice" is "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Oppression" is "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Id. § 3294, subd. (c)(2).)

An employer is not liable for punitive damages based on the actions of an employee "unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." (Civ. Code, § 3294, subd. (b).) "With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Ibid.)

Plaintiff's punitive damages claim against Defendants fails for the same reason his tortious breach of implied warranty claim fails. Plaintiff alleges that "Defendants failed to repair and abate the defects at the Subject Property to save money and increase Defendants' cash flow and net income," but fails to identify H4H and Madison's notice of the uninhabitable conditions once they began operating the property and their specific misconduct. [Compl. ¶ 19.] The insufficiently pled single enterprise theory does not impute Foundation's notice or conduct to H4H and Madison. The prayer for punitive damages, lines 25-28 on page 14, lines 5-9 and 13-22

on page 19, and lines 17-26 on page 23 are stricken as to Defendants. Because there is a reasonable possibility that Plaintiff can cure this defect, he is granted leave to amend.

Plaintiff is granted 30 days' leave to amend. Plaintiff may only add facts in support of the successfully challenged claims. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) If Plaintiff declines or fails to file an amended complaint, Defendants shall answer the operative complaint within 10 days of the lapsed deadline. Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Defendants to give notice.

Dept. 617

Date: 8-20-26

Case #: 25STCV29057

Trial Date: None Set

DEMURRER WITH MOTION TO STRIKE

MOVING PARTY: Defendant, AIDS Healthcare Foundation

RESPONDING PARTY: Plaintiff, Johnny Goodwin

RELIEF REQUESTED

Demurrer to Second, Fourth, and Sixth Causes of Action in Complaint

Motion to Strike

SUMMARY OF ACTION

Plaintiff Johnny Goodwin filed the instant habitability action against Defendants AIDS Healthcare Foundation (Foundation), Housing4Humanity (H4H), and 423 The Madison, LLC (Madison) asserting causes of action for: (1) Breach of Contract/Covenant of Quiet Enjoyment/Warranty of Habitability; (2) Tortious Breach of the Implied Warranty of Habitability; (3) Negligence; (4) Violation of California Civil Code Section 1942.4; (5) Violation of Unfair Business Practices; and (6) Tenant Harassment.

RULING

Request for Judicial Notice: Granted.

The Court takes judicial notice of the municipal code provisions. (*Madain v. City of Stanton* (2010) 185 Cal.App.4th 1277, 1280, fn. 1.)

Demurrer: Sustained in part.

Foundation demurs to the second, fourth, and sixth causes of action in Plaintiff's complaint for tortious breach of the implied warranty of habitability, violation of California Civil Code section 1942.4, and tenant harassment. It argues that the tortious breach of implied warranty claim fails because it sounds in contract, making it duplicative of the breach of contract cause of action, and Plaintiff fails to plead Foundation's notice of violations after it no longer owned the property. Foundation contends that the section 1942.4 claim fails because it is time-barred and Plaintiff does not connect agency notice of a substandard condition to the 35-day abatement period. Foundation finally argues that Plaintiff fails to state his tenant harassment claim because he does not allege conduct directed at him and relies in part on an inapplicable municipal code provision. Plaintiff opposes the demurrer, denying his section 1942.4 claim is untimely and maintaining the sufficiency of the allegations in support of his claims. Foundation's demurrer is overruled as to the tortious breach of implied warranty claim and sustained with leave to amend as to the section 1942.4 and tenant harassment claims.

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a

demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.) "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

Second Cause of Action: Tortious Breach of the Implied Warranty of Habitability

Foundation argues that Plaintiff's tortious breach of implied warranty claim fails because it is a duplicative contract cause of action and he does not plead Foundation's notice of post-ownership violations. Duplication is not grounds for demurrer. (Code Civ. Proc., § 430.10; *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 890; but see *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290 [sustaining demurrer to duplicative cause of action].) The issue is thus whether Plaintiff sufficiently pleads Foundation's notice of the alleged uninhabitable conditions.

"[A] tenant may maintain a tort action against his landlord for damages suffered by way of annoyance or discomfort or for injury to his personal property caused by the landlord's failure to keep the premises in a habitable condition." (*Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal.App.4th 1281, 1298.) "The elements of such an affirmative claim are the existence of a material defective condition affecting the premises' habitability, notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages." (*Id.* at p. 1297.)

Foundation's demurrer to the tortious breach of implied warranty claim is overruled. Plaintiff alleges that Foundation's failure to remedy the uninhabitable conditions caused him personal injury in the form of bedbug bites, "breathing mold spores," and

stress and other mental health issues. [Compl. ¶ 32.] He further alleges Foundation's notice of the deficient conditions through 2024 via agency citations. [Id. ¶¶ 21-24.] Foundation's notice of post-ownership conditions is irrelevant to establishing its notice of violations during the time it owned the property. The demurrer to this claim is therefore overruled.

Fourth Cause of Action: Violation of California Civil Code Section 1942.4

Foundation argues that Plaintiff's Civil Code section 1942.4 claim fails because it is time-barred under Code of Civil Procedure section 340, subdivision (a). It further contends that Plaintiff fails to connect agency notice of a substandard condition to the statutory 35-day abatement period.

Under Civil Code section 1942.4, "a residential landlord may not demand or collect rent, increase rent, or serve a three-day notice to pay rent or quit if (1) the dwelling is untenable as defined under section 1941.1, is in violation of section 17920.10 of the Health and Safety Code, or is deemed and declared substandard under section 17920.3 of the Health and Safety Code; (2)

a public officer inspects the premises and gives the landlord written notice that it must abate the nuisance or repair the property; (3) the conditions have not been remedied within 35 days of the notice; and (4) the substandard conditions were not caused by the tenant's acts or omissions." (Erlach, supra, 226 Cal.App.4th at p. 1298; Civ. Code, § 1942.4, subd. (a).) "A landlord who violates this section is liable to the tenant or lessee for the actual damages sustained by the tenant or lessee and special damages of not less than one hundred dollars (\$100) and not more than five thousand dollars (\$5,000)." (Civ. Code, § 1942.4, subd. (b)(1).)

Plaintiff's claim is barred by the statute of limitations. "An action upon a statute for a penalty or forfeiture" must be brought within 1 year. (Code Civ. Proc., § 340, subd. (a).) "[S]tatutes that provide for mandatory damages either in addition to actual injury or regardless of actual injury or fault are considered to be in the nature of a penalty or forfeiture subject to the one-year limitations period." (County of El Dorado v. Superior Court (2019) 42 Cal.App.5th 620, 625.) Civil Code section 1942.4 is subject to the 1-year limitations period because it provides for fixed special damages in addition to the actual damages sustained by a tenant. The citations and re-inspections Plaintiff identifies fall outside the limitations period. [Compl. ¶¶ 21-23.] While Plaintiff alleges that "LAHD continued to observe violations at the premises on October 3, 2024, November 21, 2024, and December 18, 2024," he does not state what those violations were. Because there is a reasonable possibility that Plaintiff can amend his complaint to allege an unabated noticed condition within the 1-year limitations period, the demurrer to this claim is sustained with leave to amend.

Sixth Cause of Action: Tenant Harassment

Foundation argues that Plaintiff's tenant harassment claim fails because he does not allege conduct specifically directed towards him. It further contends that to the extent Plaintiff relies on LAMC section 8.52.130 for his claim, that provision is inapplicable because it applies only to the unincorporated areas of Los Angeles County.

The demurrer to the tenant harassment claim is sustained. Tenant harassment is defined as "a landlord's knowing and willful course of conduct directed at a specific tenant that seriously alarms or annoys the tenant, and that serves no legitimate purpose." (LAMC § 45.33.) Here, Plaintiff only alleges a general lack of maintenance on the property that affected his "unit, health, and safety" rather than conduct that specifically targeted him. [Compl. ¶¶ 18-33, 90.] Section 8.52.130 is also inapplicable because it only applies to "Landlords and Tenants in Dwelling Units within the unincorporated areas of the County," and Plaintiff does not allege the property is located in such an area. Because there is a reasonable possibility that Plaintiff can amend his complaint to allege specific conduct directed at himself, he is granted leave to amend.

Motion to Strike: Denied.

Foundation moves to strike Plaintiff's payer for punitive damages as well as allegations supporting his punitive damages claim. It argues that Plaintiff does not sufficiently allege the requisite malice or oppression to support his punitive damages claim against it and that the tortious breach of implied warranty claim cannot support the punitive damages request. Plaintiff opposes the motion, maintaining the sufficiency of the allegations in support of his claim. Foundation's motion is denied.

To support punitive damages, the plaintiff's complaint "must allege ultimate facts of the defendant's oppression, fraud, or malice." (Cyrus v. Haveson (1976) 65 Cal.App.3d 306, 316-17; Civ. Code, § 3294, subd. (a).) "Malice" is "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Oppression" is "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Id. § 3294, subd. (c)(2).)

An employer is not liable for punitive damages based on the actions of an employee "unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." (Civ. Code, § 3294, subd. (b).) "With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Ibid.)

Plaintiff sufficiently pleads his entitlement to punitive damages. He alleges numerous unabated defects in the property since 2022, including cockroaches, bedbugs, and mold on the premises. [Compl. ¶¶ 21-25.] Plaintiff further alleges that despite knowledge of these defects, Foundation failed to repair them to "save money" and increase its "cash flow and net income" from operation of the property. [Id. ¶ 20.] It can be inferred from the allegations in the complaint that this failure to act constituted the allegedly harmful corporate policy enacted by Foundation's officers. [Id. ¶ 16.] This is sufficient to support Plaintiff's punitive damages request. (See Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 920 [prayer for punitive damages sufficiently supported by allegations of defective conditions creating a nuisance and defendants' "full knowledge of the consequences thereof and the damage being caused to plaintiff"].) The motion to strike is therefore denied.

Plaintiff is granted 30 days' leave to amend. Plaintiff may only add facts in support of the successfully challenged claims. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) If Plaintiff declines or fails to file an amended complaint, Foundation shall answer the operative complaint within 10 days of the lapsed deadline. Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Foundation to give notice.